

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT

for

Repurposing of the Historic Pump House

This Professional Services Agreement ("Agreement") is made and entered into by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and TDSi, located at 1610 Pioneer Avenue, Cheyenne, Wyoming, 82001 ("Consultant"). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by September 30th, 2027, as stated in Exhibit A.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of One Hundred Ninety-Eight Thousand Nine Hundred and Three Dollars (\$198,903) as stated in Exhibit A.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

To the fullest extent permitted by law, Consultant shall indemnify the City of Cheyenne, its officers, directors, partners, employees, and representatives, from and against losses, damages, and judgments arising from claims by third parties, including reasonable attorneys' fees and expenses recoverable under applicable law, but only to the extent they are found to be caused by a negligent act, error, or omission of Consultant or Consultant's officers, directors, members, partners, agents, employees, or subconsultants in the performance of services under this Agreement.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES (49 C.F.R. Part 26)
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution to September 30th, 2027. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement;

and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, and Exhibit A consisting of seven (7) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed

to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____

Exhibit A



Proposal for Professional Services for
CITY OF CHEYENNE
REPURPOSING OF THE HISTORIC PUMPHOUSE
Cheyenne, Wyoming

January 14, 2026

City of Cheyenne
Community Recreation and Events Department
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

ATTN: Jason Sanchez – Director, Community Recreation & Events

RE: Proposal for Professional Design Services for City of Cheyenne
Repurposing of the Historic Pumphouse

Jason:

Thank you again for contacting our firm regarding the proposed project to prepare a design solution of the repurposing of the historic Pumphouse. We are honored to have the opportunity to work with you and your department and to be part of the Team to preserve this important historic structure.

Based on the fact that the proposed Police Department storage building will be a separate free-standing structure, we recommend that it be considered a separate project. We have not included it in the scope covered by this proposal.

Following is a proposal for our services. If you have any questions, please do not hesitate to call me.

Thank you again,

A handwritten signature in black ink, appearing to read "Randy Byers", with a stylized flourish at the end.

Randy Byers, AIA, LEED AP^{BD+C}
Randy@tdsi.us

SCOPE OF SERVICES

- ✦ The general description of the Scope of Services for this project is as follows:
 - Architectural services for the design and construction of renovating and remodeling of the existing Cheyenne Pumphouse for the purpose of housing the City's Clean & Safe Department offices and equipment storage. The anticipated renovation will include construction of restrooms in the north end of the building, with one office and a break room constructed elsewhere in the building. The remainder of the existing structure will remain open for vehicle and equipment storage.
 - The metal building addition at the northeast corner of the building and the second floor addition over the north end of the building will be removed to facilitate reconstruction of that roof area.
 - The project will also include investigation as to the viability of maintaining the existing metal building addition on the east side of the Pumphouse. The metal building addition would remain and would be renovated with new insulation, new metal siding and roofing and interior metal liner panels. The purpose of the renovated metal building space would be to provide additional equipment and vehicle storage space for the Clean & Safe program.
 - The scope of work anticipates reuse of existing design and documents previously prepared for the proposed Cheyenne Chamber of Commerce offices at the Pumphouse. The scope of this project will include the restoration and stabilization of the existing stone structure but will not include preparation of a Nomination to the National Register of Historic Places. The scope includes raising the existing floor in the Pumphouse as previously proposed. The floor in the metal building addition would likely remain at its existing elevation, and there would be a transition between the raised floor in the Stone building and the lower floor level in the metal building addition. The scope of the mechanical work will include new HVAC for the restrooms, offices and break room, as well as minimal overhead radiant heating for the vehicle storage areas in the existing stone building and in the metal building addition if it remains. Code required exhaust for the areas where vehicles are operating under their own power will be included. Installation of a fire sprinkler system will be investigated.
- ✦ Estimated Project Budget:
 - Design: Unknown
 - Construction: \$2,660,576
 - Overall Budget: \$3,098,830
- ✦ Project Delivery Method: Design-Bid-Build
- ✦ Estimated Construction Duration: 365 days maximum
- ✦ More specifically the anticipated Scope of Services includes:
 - Design Phase:
 - Site Visits to Document Existing Conditions,
 - Preparation of Design Documents
 - Review (Zoom or MSTeams) Meeting(s) with Owner
 - Bidding and Negotiation services
 - Construction Administration services
- ✦ Owner's Project Manager: Jason Sanchez – Director, Community Recreation & Events

LIST OF ANTICIPATED STAFF

- ✦ The primary TDSi staff member(s) proposed for this project are as follows:
 - Randy Byers, AIA, LEED AP^{BD+C} Architect, TDSi Principal
 - Stephanie Lowe, Associate AIA..... Historic Preservation Specialist
- ✦ The following TDSi personnel may also be involved with this project:
 - Clint Taylor, AIA, PE, LEED AP^{BD+C} Architect, TDSi Associate
 - Will Byers, Associate AIA Intern Architect, TDSi Associate

FORM OF AGREEMENT BETWEEN OWNER AND ARCHITECT

- ✦ The form of agreement between the Owner and Architect shall be:
 - City of Cheyenne Professional Service Agreement

CONSULTANTS

CIVIL ENGINEER		Darci Hendon, PE, Principal Theena Engineering Cheyenne, Wyoming
STRUCTURAL ENGINEER		Jera Likely, PE, Senior Engineer Martin / Martin Wyoming Cheyenne, Wyoming
MECHANICAL ENGINEER		Justin Montgomery, PE, Principal DesignPoint Engineering Cheyenne, Wyoming
ELECTRICAL ENGINEER		Mike Gust, PE, Principal Gust Engineering Cheyenne, Wyoming

If during the course of the project, the services of additional outside consultants are deemed necessary, are requested by the Owner, or are required by the authorities having jurisdiction over the Project, such services will be considered a Reimbursable Expense. We will coordinate with the Owner to add consultants to our team that are mutually agreeable to both the Owner and our firm.

SCHEDULE

- ✦ TDSi Proposal January 14, 2026
- ✦ Execute Amendment to Owner/Consultant Agreement January 2026
- ✦ Design February 2026 – July 2026
- ✦ Bidding / Negotiation August 2026 – September 2026
- ✦ Construction September 2026 – September 2027

PROFESSIONAL SERVICES FEE

- ✦ For this project we propose to provide the Architectural services described herein, for the Stipulated Sum fee of:

- Basic Services
 - Design Phases\$132,965.00
 - Bidding/ Negotiation\$9,231.00
 - Construction Administration\$56,707.00
 - TOTAL FEE\$198,903.00

plus Reimbursable Expenses.

TDSi RATE SCHEDULE

HOURLY RATES

- ✦ TDSi Hourly Rates are as follows:

<u>Staff Member</u>	<u>Rate Per Hour</u>
o Randy Byers, AIA, LEED AP ^{BD+C} – TDSi Principal, Architect	\$ 215
o Clint Taylor, AIA, PE, LEED AP ^{BD+C} - TDSi Associate Principal, Architect	\$ 165
o Architect	\$ 155
o Will Byers, AIA Associate - TDSi Associate, Project Manager/Intern Architect	\$ 155
o Stephanie Lowe, Intern Architect/Historic Preservation Specialist	\$ 125
o Design Technology Specialist	\$ 115
o Legal testimony will be invoiced at 2 times the above noted hourly rate; Research and consultation as an Expert Witness, and time giving depositions will be billed at 1.5 times the above noted hourly rate.	

CONSULTANT SERVICES

- ✦ Consultant fees and reimbursable expenses will be billed at cost plus 15% markup.

REIMBURSABLE EXPENSES

- ✦ Expenses incurred in connection with the project will be billed at actual cost plus a 15% markup.
- ✦ Examples of such expenses are:
- o out of town travel and subsistence expenses;
 - o reproduction costs for documents for other than the Architect's use or record;
 - o postage and shipping charges.

- ✚ Mileage is billed at the current IRS rate plus a 15% markup.
- Hourly Rates and Reimbursable Expenses Rates are subject to review and change on a periodic basis, or as circumstances require.

INITIAL PAYMENT RETAINER

- ✚ An Initial Payment Retainer will not be required for this project.

BILLING SCHEDULE

- ✚ E-Invoice Format - All invoices will be emailed to the Client, with an option for the Client to pay online.

METHOD OF DISTRIBUTION OF BID DOCUMENTS

- ✚ Bid documents shall be distributed via a digital plan room, City of Cheyenne OpenGov.com Procurement portal, QuestCDN.com, or equal.

ADDITIONAL SERVICES

- ✚ Additional Services will be invoiced at the Hourly Rates current at the time the services are provided. If the professional services covered by this proposal have not been completed within the stated duration noted, through no fault of the Architect, additional services shall apply. Architect shall give written notice to the owner if additional services are anticipated, prior to additional services occurring.

PRODUCTS OF SERVICE

- ✚ In general, the anticipated Products of Service include the following:
 - At Completion of Design Phase:
 - One (1) set of Digital Drawings
 - One (1) set of Specifications

SERVICES NOT INCLUDED

- ✚ The Architect's fees do not include the following:
- Preparation of Planning & Zoning applications, maps, etc. including annexation, Site Plan Review, etc.
 - Surveying
 - Hazardous Material (Asbestos, Lead, Mold, etc.) Testing / Inspection, Abatement Design or Abatement
 - Environmental Investigations (Phase I or Phase II)
 - Geotechnical Investigations
 - Acoustical Design
 - Interior Acoustic Design
 - Sound Isolation Design
 - Mechanical Noise & Vibration Control
 - Landscape or Irrigation System Design
 - Consultant other than those specifically listed above
 - Special Consultants
 - Furniture Fixtures & Equipment Design or Documents
 - Preparation of documents for Approvals required by Governmental Agencies
 - Preparation of:
 - Site plan Review
 - Engineering Plan Review
 - Drainage Worksheet and/or Study
 - Transportation Worksheet and/or Study
 - Administrative Adjustment
 - Variance
 - Zone Change
 - Replat
 - Conditional Use Permit
 - Off-site utility updates
 - Changes to existing utilities on site
 - Preparation of Nation Register of Historic Places Nomination
 - Post Construction Services
 - Manual Distribution of Bid Documents
 - Plan Review Fees
 - Building Permit Fees
 - Printing, except as specifically noted herein
 - Construction Testing Fees
 - Specialty Inspections
 - Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies
 - Preparation of Color Board
 - Models
 - Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted above
 - Utility water, sewer, or natural gas piping further than 5 feet outside the building including landscape irrigation
 - Ground source heat pump system design including loop field design
 - Fire sprinkler design

- Energy modeling
- Life cycle cost analysis of multiple mechanical systems
- LEED Documentation or Registration of Certification Fees
- Commissioning of the mechanical systems
- Ground Vibration Testing and Recommendations
- Testing and analysis of ground borne environmental vibrations
- Exterior Sound Isolation Design
- Detailed Analysis of Environmental Noise (CADNA Model)
- Security Design
- Professional Liability Coverage beyond limits noted below
- Preparation of design or documents for other free-standing buildings

The services noted above may be requested as Additional Services.

DOCUMENTS REQUIRED FROM OWNER

- ✦ Documents required to be provided by the Owner include the following:
 - none anticipated

INSURANCE

- ✦ Professional Liability Insurance:
 - TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a "claims-made" policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.
- ✦ General Business Liability Insurance:
 - TDSi carries a General Business Liability policy provided by AMCO Insurance Company and Allied Insurance Company of America. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

TERM OF PROPOSAL

- ✦ This proposal will be valid for 30 days.

Respectfully:



Randy Byers, AIA, LEED AP^{BD+C}
TDSi President
for the firm